

25CV05696 Malkiat Singh Mand v Albertsons Companies Inc

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-01

Motion: Defendant's Motion to Compel

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv05696-0>

Source SHA-256: 916392cd6bc5c2b9b7c0d1ce63cd30844f0f292c720640796616f26d61669402

Tentative Ruling: Malkiat Singh Mand v Albertsons Companies Inc

Case Number

25CV05696

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 06/01/2026 - 10:00

Nature of Proceedings

Defendant's Motion to Compel

Tentative Ruling

Plaintiff ["Mand"]: Self-represented

Defendant ["Albertsons"]: Amy Lewis, Gregory E. Stone

Issue

Defendant's Motion to Compel

RULING

Mand has failed to respond to the subject discovery. That failure justifies the requested order compelling responses (answers, without objections) to Albertsons' Form Interrogatories and an award of sanctions in the amount of \$1,110.00 in favor of Albertsons and against Mand. There is no [Proposed] Order submitted. Defense counsel will submit one forthwith consistent with this ruling.

The Pretrial Date of 2/17/27 at 11:30am is confirmed; the actual trial starts 2/18/27 at 9am. All trial documents are due one week in advance.

Analysis

This is an unopposed motion to compel responses to form interrogatories and for sanctions.

The Motion

Filed by Defendant 4/15/2026; set for 7/1/26; 26 pages; summarized; Albertsons moves for an order compelling Mand to provide responses (answers, without objection) to Defendant's Form Interrogatories. Albertsons further requests that Mand be ordered to pay sanctions in the amount of \$1,110.00 to Albertsons representing reasonable expenses including the attorney's fees incurred by Albertsons in connection with this proceeding. Plaintiff Malkiat Mand ("Plaintiff" or "Mand") alleges that on August 25, 2023, he

allegedly slipped and fell on a wet floor in the men's restroom at the Albertsons' store

located at 7127 Hollister Ave., #27, Goleta, CA 93117, after which an unknown patron

allegedly pinched Plaintiff's right shoulder that was allegedly instigated by an unknown

employee of Albertsons.

Procedural History

On or about February 10, 2026, Albertsons served via U.S. Mail, initial written

discovery including form interrogatories, special interrogatories, request for admissions

and request for production of documents on Mand. (See Exhibit "A" to the Declaration of

Amy W. Lewis ("Lewis Decl."))

Mand contacted counsel for Albertsons on March 10, 2026, via telephone and e

15 -

mail seeking an extension to March 31, 2026 to provide verified responses to Albertsons

16 '

written discovery requests, which counsel granted. On or about March 20, 2026, Mand

17

served via U.S. Mail and e-mail, verified responses to requests for admission and special

interrogatories and unverified responses to request for production of documents. No

responses to form interrogatories were provided. On March 23, 2026, Albertsons'

counsel correspondence with Mand via e-mail regarding the status of the responses to

form interrogatories and noting that same were anticipated to be served on or before

March 31, 2026, pursuant to the earlier extension granted by counsel. Counsel provided

another copy of the form interrogatories and further advised that Mand should advise if

further time was required. (See Exhibit "B" to Lewis Decl.)

No responses were forthcoming, and although there is no meet and confer

requirement for failure to provide discovery responses, Albertsons' counsel sent an

additional e-mail to Mand on April 8, 2026 agreeing to delay filing any Motion to Compel until the end of the week. (See Exhibit "C" to Lewis Decl.) As of the filing of this motion,

no responses have been provided, and there has been no further communication from

Mand.

Supported by the Declaration of Amy W. Lewis. Summarized: Mand alleges that on August 25, 2023, he allegedly slipped and fell on a wet floor in the men's restroom at the Albertsons' store

located at 7127 Hollister Ave., #27, Goleta, CA 93117, after which an unknown patron

allegedly pinched Plaintiff's right shoulder that was allegedly instigated by an unknown

employee of Albertsons. On or about February 10, 2026, Albertsons served via U.S. Mail, initial written discovery including form interrogatories, special interrogatories,

request for admissions and request for production of documents on Mand. [Exhibit "A."] Mand contacted counsel for Albertsons on March 10, 2026, via telephone and e-mail seeking an extension to March 31, 2026 to provide verified responses to Albertsons' written discovery requests, which counsel granted. On or about March 20, 2026, Mand served via U.S. Mail and e-mail, verified responses to requests for admission and special interrogatories and unverified responses to request for production of documents. No responses to form interrogatories were provided. On March 23, 2026, Albertsons' counsel correspondence with Mand via e-mail regarding the status of the responses to form interrogatories and noting that same were anticipated to be served on or before March 31, 2026, pursuant to the earlier extension granted by counsel. Counsel provided another copy of the form interrogatories and further advised that Mand should advise if further time was required. [Exhibit "B."] No responses were forthcoming, and although there is no meet and confer requirement for failure to provide discovery responses, Albertsons' counsel sent an additional e-mail to Mand on April 8, 2026 agreeing to delay filing any Motion to Compel until the end of the week. (Exhibit "C") As of the filing of this motion, no responses have been provided, and there has been no further communication from Mand. Counsel for Albertsons attempted in good faith to meet and confer with Mand regarding his verified responses to form interrogatories propounded by Albertsons without the need for Court intervention. The refusal of Mand to provide verified answers justifies the imposition of sanctions (reasonable fees and costs) in the amount of

\$1,110.00 in favor of Defendant Albertsons and against Mand.

Supported by Exhibits A, B, C.

Opposition

None filed

The Court's Conclusions

Mand has failed to respond to the subject discovery. That failure justifies the requested order compelling responses (answers, without objections) to Albertsons' Form Interrogatories and an award of sanctions in the amount of \$1,110.00 in favor of Albertsons and against Mand.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US